

Yashpal v. State of U.P. — recovery citation; representation before Executive Engineer; Section 127 liberty

High Court of Judicature at Allahabad · Division Bench · 27 February 2020 · WRIT-C No. 6463 of 2020 · **Writ disposed of; Executive Engineer to hear objections and pass a speaking final order; coercive recovery stayed; liberty to appeal under Section 127.**

HEADNOTE

A writ seeking to quash a recovery citation of Rs. 10,20,135 was disposed of without examining the merits. The petitioner was directed to appear before the Executive Engineer with objections and evidence; the Engineer was to pass a speaking final order within four weeks. Coercive action was stayed for seven weeks or until disposal of the objection, whichever earlier. If aggrieved by the final order, the petitioner could appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the citation.

FACTUAL SUMMARY

Yashpal filed a writ in the Allahabad High Court seeking certiorari to quash a recovery citation dated 7 February 2020 issued by respondent no. 4 for Rs. 10,20,135. He alleged that the electricity department was taking coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. The petition (Writ-C No. 6463 of 2020) was listed as fresh on 24 February 2020 and heard on 27 February 2020, when counsel for the petitioner and the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

liberty to Section 127 appeal after speaking final order

HOLDING

Without deciding the validity of the recovery citation, the Court directed the petitioner to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection (whichever earlier), and reserved liberty, if the petitioner is aggrieved by that final order, to file an appeal under Section 127 of the Electricity Act, 2003 in accordance with law. Default in appearance would revive the citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ against the recovery citation was disposed of without a merits grant or refusal, with liberty to appeal under Section 127 of the Electricity Act, 2003 if the petitioner is aggrieved by the Executive Engineer's final order. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Court first required the Executive Engineer to pass a speaking final order on the petitioner's objections, and only thereafter reserved the Section 127 appeal against that final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 7 FEBRUARY 2020 FOR RS. 10,20,135

The citation was neither quashed nor upheld; coercive action was only stayed pending the Executive Engineer's consideration. ¶ 1

NOT DECIDED — WHETHER THE RESPONDENTS FOLLOWED THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged in argument but not examined. ¶ 1

